AUCKLAND *CITY*

Ref: SP/02/0239

10 May 2002

Mr R A and Mrs T F Kruyff
12 Karori Crescent
Orakei
AUCKLAND 1005

Dear Mr R A and Mrs T F Kruyff

UNAUTHORISED BUILDING WORK: 24 ROCHDALE AVENUE, GLENDOWIE

Council has received a report by Bernadette Mark of Approved Building Certifiers Limited on unauthorised building work at the above address. Approved Building Certifiers have also arranged payment of the $88.00 lodgement fee for this report.

The work identified and covered by the report involves:

i) raised timber deck
ii) basement workroom with internal stair access

The report indicates that the work undertaken within the last five years in the case of the deck and 10 years or more in the case of the workroom is not in a dangerous or insanitary condition, nor is it considered earthquake prone. Moreover, the work is not considered to require finishing or remedial attention.

While this acknowledgment should not be construed as conferring legal status on the work, Council will agree on the basis of these findings to permit the work to remain in its present position and state, but shall be absolved of all liability arising as a consequence of the failure of all or of any part of the work. Accordingly, no further action by Council is contemplated unless in the event of the structure becoming dangerous, insanitary or earthquake prone as per sections 64, 65 and 66 of the Building Act 1991.

It must be emphasised, this undertaking to permit the work to remain in its present position and state is made in respect of health, safety and general construction matters only, under the purview of the Building Act 1991 and is based on the presumption that the work is not currently the subject of separate enforcement action by Council. It does not take into consideration any planning requirements under the District Scheme, which would need to be addressed separately.

Postal Address
Private Bag 92516 Wellesley Street Auckland 1030 New Zealand
Location UDC House 35 Graham Street Auckland City
Telephone (09) 379 2020

Any enquiries relating to development controls and to planning issues generally should be referred in the first instance to Council's planning help desk, tel: 379 2021.

A copy of the report has been placed on Council's site file and will be made available for future reference by prospective purchasers of this property. Council's permanent database has also been up-dated and reference to the report will appear in any Land Information Memorandum (LIM) issued in the future.

Yours sincerely

Tel: 353 9469 (direct dial)
E-mail: holmesa@akcity.govt.nz

Andrew Holmes
BUILDING OFFICER

8 May 2002

Auckland City Council
35 Graham Street
AUCKLAND

Attention: Andrew Holmes

Re: Safe and Sanitary Report 24 Rochdale Avenue, Glendowie, Auckland

Dear Andrew,

Please find attached a Safe and Sanitary Report carried out at the above address. Approved Building Certifiers were requested to carry out the report by the current owners following the discovery that previous work had been carried out without consent.

If you have any questions, please don't hesitate to contact me.

Regards
APPROVED BUILDING CERTIFIERS

Bernadette Mark
Building Control Officer

SAFE AND SANITARY REPORT

24 ROCKDALE ROAD, GLENDOWIE AUCKLAND

ABC NORTH SHORE 100 Bush Road, Albany, North Shore City.
P O Box 300191, Albany, North Shore City. Ph: (09) 414 1555, Fax: (09) 414 1556.
E-mail: abc.northshore@buildingcertifiers.co.nz.

ABC HENDERSON 10/28-30 Moselle Avenue, Henderson, Waitakere City.
P O Box 104112, Lincoln North, Waitakere City. Ph: (09) 835 2980, Fax: (09) 835 2983.
E-mail: abc.west@buildingcertifiers.co.nz

ABC PANMURE 36 Court Cres, Panmure, Auckland City.
P O Box 14749 Panmure, Auckland. Ph: (09) 527 5128, Fax (09) 527 5129.
E-mail: abc.panmure@buildingcertifiers.co.nz

ABC WELLINGTON CITY Level 1, 2 Centennial Highway, Ngauranga, Wellington.
P O Box 1542, Wellington City. Ph: (04) 477 1220, Fax (04) 477 1022.
E-mail: abc.wgtn@buildingcertifiers.co.nz

Ref: SS/015/02

8 May 2002

R and T Kruyff
c/- 24 Rochdale Avenue
Glendowie
AUCKLAND

Dear Robert,

Re: **Unauthorised Alterations – 24 Rochdale Avenue, Glendowie, Auckland**

Further to my site visit to the property at 24 Rochdale Avenue, Glendowie, Auckland to view the works undertaken without the benefit of Building Consent, my report is as follows:

Brief

This report was written at the request of Robert and Taryn Kruyff, current property owners.

Prior to the above property going to auction it was discovered that the deck and workspace/auxiliary room created in the basement had been constructed at the above property without Building Consent or Permit Approval.

Approved Building Certifiers were therefore asked to assess the work and ascertain whether it could be considered Safe and Sanitary under the terms of Section 64 of The New Zealand Building Act 1991.

Other than restore the property to its original configuration, the only option to address the current status of work is to have it confirmed by a suitably qualified person to the Territorial Authority (in this case Auckland City Council) that the work in question can be considered Safe and Sanitary under the terms of Section 64 of The Building Act 1991.

While this will address the current status of the alterations with prospective purchases it does not legalise the works, and the alterations will continue to be classed as unauthorised building works, however now registered on council's records.

Inspection

A visual inspection only was undertaken on Wednesday 8 May 2002 in the presence of the owner Robert Kruyff, Tony Heron and myself, Bernadette Mark, both of Approved Building Certifiers Limited.

Scope

The works consisted of:

- Construction of a deck/outdoor living area along the northeastern side of the dwelling.
- Basement development to provide additional work space/auxiliary room.

Refer to attached documentation in Appendix A.

Findings

Timber Deck

The timber deck has been constructed from the following materials:

- Posts ex 100x100mm H4 treated seated in conc. pad foundations.
- Bearers ex 150x50mm H3 treated
- Joists ex 150x50mm H3 treated
- Decking ex 100x25mm kwilla or similar hardwood

The deck has been built in a rough arrow shape, approximately 4500mm wide, and 6000 mm in length, running along the side of the dwelling. The height of the deck above ground is 1400mm max. with baseboards/trellis covering this area. There is a combination of trellis, providing privacy from the road and a barrier constructed along the perimeter of the deck at a height of 1000mm. Stairs have been constructed to provide access to the deck and kitchen giving access to the interior.

We are able to confirm that the work was undertaken in the last 5 years.

I confirm that it is Approved Building Certifiers professional opinion that the above works can be considered sound from a construction and structural point of view and are in general accordance with the New Zealand Building Code and associated documents.

Basement Development

The basement development consists of a room, approximately 3300mm wide by 4200mm long located underneath the kitchen/bedroom. Access is provided by means of a narrow set of stairs leading down from the kitchen.

We were unable to ascertain when this work was carried out, but it would be in our opinion that the work was undertaken prior to 1991.

While this space would not comply for use as a habitable room under current regulations for access, ventilation, or awareness of the outside environment, it was constructed prior to 1991 and therefore does not require upgrading to meet the current requirements of the Building Code. However, it is our opinion that the work is structurally sound and can be considered safe and sanitary in terms of Section 64 of the New Zealand Building Act 1991.

Refer attached legislation in Appendix B

Conclusion

A building is deemed to be dangerous if, in the ordinary course of events (excluding earthquakes), it is likely to cause injury or death to anyone in it or anyone on any other property, or to damage any other property.

In addition any building which, because of fire hazard and occupancy is likely to give rise to loss of life in a fire can also be deemed to be dangerous.

A building is deemed to be insanitary if:

- It is located or constructed in such a way, or is in such disrepair that it is offensive or likely to be injurious to heath.
- It has a roof or walls that leak or other insufficient provisions against moisture penetration causing dampness in the building or an adjoining building.
- It does not have adequate supply of potable water or,
- It has inadequate sanitary facilities.

In Approved Building Certifier's view the works in question cannot be deemed either 'Dangerous' nor 'Insanitary' in terms of the above criteria and therefore I would confirm that in our professional opinion they can be considered 'Safe and Sanitary' in terms of Section 64 of The New Zealand Building Act 1991.

Resource Management Act and Auckland City Council District Plan.

No assessment of the works has been carried out under the applicable planning controls for the area.

Use of This Report.

In accordance with Robert Kruyff's instructions a copy of this report, together with the supporting photographs and plans, has been submitted to Auckland City Council in order that it will become part of the Council's held records for the property.

However, this report was written at the request of Robert for the specific purpose stated and no responsibility is accepted in the event of this report being used by a third party/s for any other purposes.

Prepared By:

Bernadette Mark
N.Z.C.D. Nat. Dip. Arch. Tech.
BUILDING CONTROL OFFICER

Reviewed By:

Tony Heron
N.Z.C.B. M.B.O.I.N.Z.
PANMURE BRANCH MANAGER

Copies to:

- Client
- Jim Broadbent – Barfoot & Thompson
- Auckland City Council
- ABC file

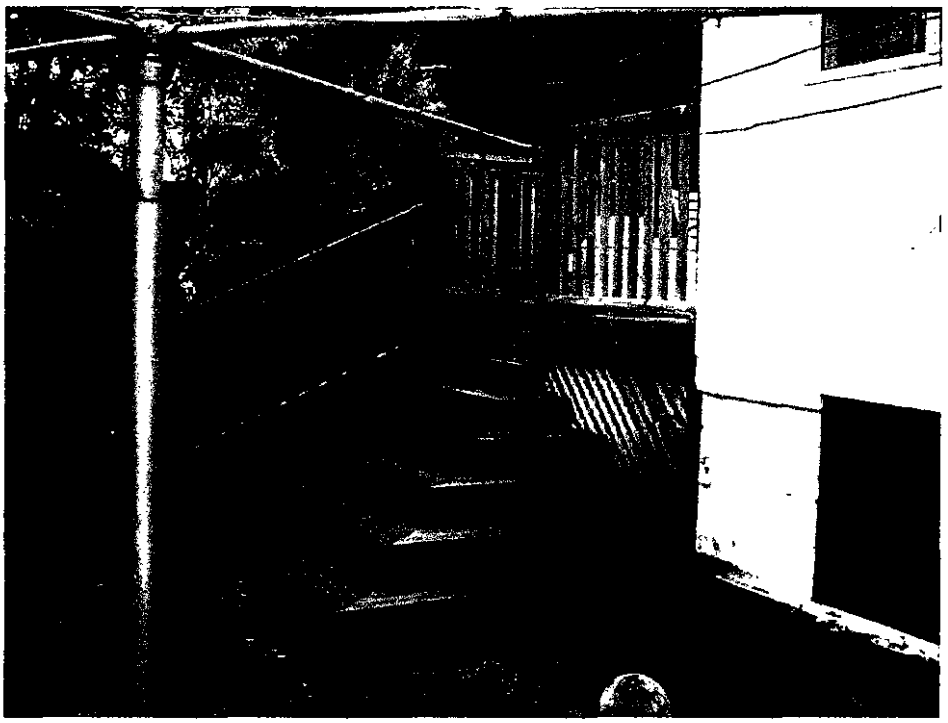

Figure 1 Stairs providing access to deck and kitchen

Figure 2 Deck Addition

Figure 3 Stairs providing access to additional space in basement